

7. Which of the following Constitutional Amendment in India made judiciary subservient of Parliament?

- (a) 42nd Constitutional Amendment
- (b) 43rd Constitutional Amendment
- (c) 40th Constitutional Amendment
- (d) More than one of the above
- (e) None of the above

BPSC (Tre-3) {Class 1-5}–2024

Ans. (a)

The 42nd Constitutional Amendment, enacted in 1976 during the Emergency period under Prime Minister Indira Gandhi, brought several significant changes to the Indian judiciary. It is often referred to as the "Mini-Constitution" due to the extensive nature of the amendments it made. Key changes affecting the judiciary included :

- **Curtailling the power of judicial Review**—The 42nd Amendment sought to limit the judiciary's power to review and invalidate laws passed by Parliament, especially in the context of fundamental rights.
- **Amendment of Article 368**—The amendment made it clear that constitutional amendments made by Parliament could not be questioned in any court, effectively restricting the judiciary's role in reviewing constitutional amendments. Etc.

While the 42nd Amendment was controversial for its attempt to curtail the judiciary's independence, many of its provisions were reversed or diluted by the 44th Constitutional Amendment in 1978 after the Emergency ended. The 44th Amendment restored much of the judiciary's power, especially its ability to review laws and protect fundamental rights.

The Centre-State Relation

1. In which one of the following years was Sarkaria Commission, which was empowered to recommend changes in Centre-State relations submitted its report?

- (a) 1983
- (b) 1984
- (c) 1985
- (d) 1987
- (e) None of the above/More than one of the above

64th B.P.S.C. (Pre) 2018

Ans. (e)

To consider the relationship between Union and State and to give suggestions to strengthen it, a commission was formed under the Chairmanship of Justice R.S. Sarkaria on 9 June, 1983. B. Shivaraman and S.R. Sen were the two members of this Commission. This Commission submitted its report in January, 1988.

Emergency Provisions

1. The President can declare National Emergency on the basis of –

- (a) Armed rebellion
- (b) External Aggression
- (c) War
- (d) All above mentioned reasons

46th B.P.S.C. (Pre) 2002

Ans. (d)

A state of emergency in India means a period of governance that can be proclaimed by the President of India during certain odd situations. According to the constitutional provision, under the advice of Cabinet of Ministers, the President can overrule many provisions of the Constitution, that guarantees Fundamental Rights to the citizens. Provisions related emergency are contained in the Part XVIII of the Constitution from Article 352 to 360. There can be three types of emergencies–

- National Emergency
- Constitutional Emergency
- Financial Emergency

National Emergency can be declared under Article 152 by the President Emergency can be declared on various grounds–

- War, external aggression — External Emergency
- Armed rebellion — Internal Emergency.

2. According to which Article 'National Emergency may be declared by the president of India?

- (a) Article 352
- (b) Article 370
- (c) Article 371
- (d) Article 395

53rd to 55th B.P.S.C. (Pre) 2011

Ans. (a)

See the explanation of the above question.

3. The proclamation of emergency at the first instance can be restricted to

- (a) 3 months
- (b) 15 days
- (c) 6 months
- (d) 1 year
- (e) None of the above/More than one of the above

B.P.S.C. CDPO 2018

Ans. (c)

Indian constitution Article 352 (5) say that proclamation of emergency at the first instance can be restricted to six month from the date of the passing of the second of the resolution approving the proclamation.

4. Mainly on whose advice the President's Rule is imposed in the State?

- (a) Chief Minister
- (b) Legislative Assembly